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RUSSIAN FEDERATION

Human Rights Developments

Renewed hostilities in Chechnya in September, led off by Russian air strikes that drove 185,000 civilians from their homes and raised the specter of the ghastly 1994-1996 war. Otherwise, the year's events were dominated by President Boris Yeltsin's political maneuvering in the run-up to the December parliamentary and June 2000 presidential elections. He fired three prime ministers within a year, keeping the country in constant turmoil. As a result, long-awaited reforms, needed to improve human rights in the criminal justice system, were pushed off the agenda. Press freedom also suffered under pre-election battles. With the government disengaged from reform, the Constitutional Court was the main source of progress in the field of human rights. It issued rulings de facto abolishing the death penalty and significantly changing several problematic aspects of criminal procedure.

In August, fighters from Chechnya invaded several villages in Dagestan, triggering a new Caucasian war. Russian forces bombed the villages and engaged the rebels, eventually dislodging them. In September, Russian planes started bombing Chechnya, and Russia later sent ground forces into northern Chechnya. As of mid-October, more than 150,000 people were reported to have fled their homes in Chechnya, mostly for neighboring Ingushetia. The Russian government banned ethnic Chechens from other internal border crossings. Russian police apparently allowed ethnic Russians through the Chechen-North-Ossetian internal border but forced ethnic Chechens back into northern Chechnya in early October, even as hostilities were ongoing. Russian authorities furthermore forbade ethnic Chechens from leaving Ingushetia-an impoverished region that was overwhelmed by the new crisis- for other cities in Russia, where many had relatives who could care for them. The Russian government failed to provide adequate aid to these displaced persons.

While Russian authorities claimed they were targeting military objects only, by mid-October it became increasingly apparent that numerous bombs had hit civilian targets, deliberately or through indiscriminate bombing, often killing civilians. Explosions in an open-air market in Grozny on October 21, reportedly caused by surface-to-surface missiles Russian forces launched from North Ossetia, killed 140 civilians and wounded hundreds of others. According to Memorial, a Russian human rights organization, Russian artillery shelled villages and fields indiscriminately.

In September, almost 300 people died in Moscow and two other Russian cities in four bomb attacks, which the Russian and Moscow authorities were quick to blame on Chechen operatives. In reaction, the Moscow city government unleashed a ferocious crackdown on non-Muscovites, targeting Chechens in particular as well as people from other regions of the Caucasus. The authorities forced all non-Muscovites to re-register with police and housing authorities, and rounded up and "deported" from the city limits thousands who lacked registration documents. For years, Moscow has had an appalling record of police violence and discrimination against people from the Caucasus and Central Asians. Police have used the registration system as a pretext for extorting bribes, and city authorities have used it as a pretext for keeping out non-Slavs or people from Russia's poorer regions. In the latest crackdown, police precincts throughout the city refused to re-register ethnic Chechens, citing an "order from above." Police also allegedly planted drugs or ammunition on numerous ethnic Chechens.

Regional politicians and their sponsors increasingly used the media as a tool in their struggles for power, securing control by exploiting the dire economic straits most media outlets face. Consequently,

a number of regional newspapers became mouthpieces of governors and mayors. According to the National Press Institute, this trend intensified as parliamentary and presidential elections drew closer. In numerous cities and regions, including Ekaterinburg, Yaroslavl, and Leningrad province, previously independent newspapers significantly changed their editorial line after they came under the control of local political figures.

Intimidation and harassment of journalists remained common. By August, the Glasnost Defense Foundation had registered fifty-four incidents in which journalists or newspapers were attacked or threatened. Eight journalists were killed, several apparently for their professional work.

One of the more severe examples of government threats to the independent media took place in Vladivostok. Radio Lemma, a Vladivostok independent station, faced intimidation for airing interviews with opponents of regional governor Evgenii Nazdratenko and his supporters. In June, Yuri Kopylov, a Nazdratenko ally and the appointed mayor of Vladivostok, ordered Radio Lemma's editors to stop providing air time to Nazdratenko's opponents. In July, a Radio Lemma journalist, Yuri Stepanov, was beaten up by unidentified men, apparently to intimidate the station's employees. After the station broadcasted its request for any witness to contact the station, the editor's daughter was briefly kidnaped and instructed to tell her father to stop his calls for witnesses. Around the same time, the radio station was ordered to vacate its state-owned office space, despite an ongoing contract.

On July 6, President Boris Yeltsin established a new press ministry headed by Mikhail Lesin, who promptly announced that he would defend the state against the media. In August, Lesin scolded television stations for broadcasting footage of rebel warlords in Dagestan and issued ORT (Russian Public Television) a written warning that it had violated Russia's media law by broadcasting an interview with rebel leader Shamil Basaev. Russian television stations subsequently refrained from showing direct footage of the rebels, instead referring only to their press statements.

While draft regulations were still under discussion, the Federal Security Service (FSB) started to force Internet, telephone, and pager providers throughout the country to install surveillance hardware. The FSB formally needed a judicial warrant to tap calls and on-line communications; however, the surveillance hardware allowed it to tap telephone calls and electronic communications without the providers' knowledge, making it impossible to know whether the FSB really obtained judicial warrants before accessing communications.

Almost all Russian telephone companies and Internet providers complied with the new rule, apparently following FSB threats of tax audits and withdrawal of licenses. Indeed, Bayard-Slavia Communications in Volgograd, the only Internet provider known to have refused to comply, faced tax audits, a fire department inspection, and other administrative harassment. Apparently at the instigation of the FSB, the State Telecommunications Committee eventually took away the provider's access and took steps to revoke its license. The FSB also required telephone and Internet providers to present full lists of their clients, including passwords where applicable, and to update this information monthly.

Undeterred by the judiciary, the FSB continued to persecute environmentalists, journalists, and scientists working in the field of nuclear safety. In October 1998, the St. Petersburg City Court sent back to the FSB the espionage case against former navy captain and environmental activist Alexander Nikitin, stating that the FSB's indictment was too vague and lacked evidence. After the Supreme Court rejected appeals from both the defense and prosecution, the FSB ordered another flawed expert assessment of the report Nikitin had co-authored for the Norwegian Bellona Foundation in 1995, which was the source of the case against him. On July 2, the FSB indicted Nikitin for the eighth time, basing the charges once again on secret legislation that was applied retroactively. A new court hearing was expected for late 1999.

In another FSB-led case involving nuclear safety, a Russian military court in Vladivostok acquitted military journalist Grigorii Pasko of espionage charges on July 20, 1999, finding him guilty of much less serious charges of improper military conduct, and immediately releasing him under a nationwide amnesty. The court excluded several pieces of evidence, citing falsification by the FSB. Pasko was arrested in November 1997 for allegedly passing on secret information to Japanese journalists.

In July, the FSB searched the laboratory and home of nuclear scientist Vladimir Soifer of the Pacific Oceanographic Institute in Vladivostok, raising fears of eventual criminal charges. The FSB suspected Soifer, who had been studying the effects of a 1985 nuclear accident on a military submarine in the Chazma Bay near Vladivostok, of mishandling classified documents and doing work that "posed a threat to the state security." Soifer denied any wrongdoing, stating that he only studied levels of radioactivity, which, because they may threaten the environment, cannot under Russian law be classified as a state secret. As of this writing, the FSB had not instituted criminal proceedings against Soifer.

Reform of the criminal justice system remained stalled, save for several landmark Constitutional Court rulings. The procuracy failed to investigate torture complaints properly and continued to routinely sanction arrests made by the police. The courts offered no protection against such abuses.

Police officers systematically detained suspects under false pretenses and denied them access to counsel. Police tortured numerous detainees in order to secure confessions, using methods like beatings, asphyxiation, electroshock, and suspension by body parts, as well as psychological intimidation and torture by proxy. Prosecutors used coerced confessions in court, often as the primary evidence of a defendant's guilt.

The torture of Aleksei Mikheev was a particularly egregious example of Russian police methods. On September 10, 1998, police in Nizhnii Novgorod detained Mikheev on misdemeanor charges but subsequently questioned him regarding the presumed murder and rape of a teenage girl. Mikheev confessed after police reportedly beat and electroshocked him; when police wanted him to confess to five more murders, Mikheev jumped out of the third-floor window of the interrogation room, breaking his spinal cord. Several days later, the girl, whom Mikheev confessed he murdered, turned up in perfect health.

The procuracy stalled the investigation into Mikheev's torture allegations, citing-incredibly-his physical condition, and in general failed to investigate torture complaints promptly and adequately. Such inquiries were overwhelmingly superficial and plagued with delays, and therefore rarely led to formal criminal investigations. Procurators generally failed to interview the complainant or to question alleged abusers; instead, they often forwarded complaints to police precincts, instructing the police chief to sort out what had happened.

Despite a general consensus that conditions in pretrial detention were intolerable, the government, as in previous years, lacked the political will to tackle the problem. Compounding overcrowding in pretrial facilities, the procuracy continued its widescale use of custody, often unnecessarily. For example, as of this writing Il'ia Hoffman had been in pretrial detention for more than ten months on charges of large-scale computer fraud. Doctors concluded that conditions in detention directly threatened Hoffman's life, as he suffers from asthma. In prison, Hoffman contracted pneumonia three times and the measles once. The procuracy claimed that Hoffman might attempt to abscond justice, despite the fact that Hoffman had punctually appeared for interrogations and expert assessments prior to his arrest in November 1998.

The Procuracy General delayed for another full year the release of Sergei Mikhailov, who in 1995 was wrongly sentenced to death for the murder and rape of a minor. Although a procuracy investigator once more confirmed the conclusions of three earlier investigations that Mikhailov had not committed the crime, procuracy officials failed to initiate proceedings with the Supreme Court to overturn Mikhailov's conviction. Mikhailov has been in prison for five years.

As a result of pretrial detention policies and often tough sentencing by courts, Russia's prison population continued to increase in 1999: according to official figures, it grew by 42,000 prisoners in the first five months of the year. More than one million people were held in Russia's penitentiary institutions, almost 10 percent of whom suffered from tuberculosis. Pretrial detention centers held around 300,000 people. About 80,000 of these inmates contracted serious diseases in detention and about 2,000 of them died awaiting final court rulings.

In June, the State Duma passed an amnesty, under which up to 94,000 prisoners could be released. However, according to a Ministry of Justice official, the real number of prisoners released is likely to

be closer to 60,000, as disciplinary offenders will not be released. The Moscow Center for Prison Reform reported that many places vacated by the amnesty were immediately filled with new inmates. Some officials appeared to see such amnesties, which have become a yearly event, as a substitute for reform of detention policy.

As of this writing, the State Duma did not adopt a new criminal procedure code to replace the Soviet-era code. Apparently under pressure from human rights groups, the presidential administration sent the draft code to the Council of Europe in late 1998 for an expert assessment on its compliance with the European Convention on Human Rights. The Council of Europe presented the results, which are not binding on Russia, to the administration in mid-September. At this writing, the assessment had not been made public. It remained unclear as to when parliamentary debate on the draft code would resume.

In April, the Constitutional Court found unconstitutional several provisions in the criminal procedure code that allowed judges to return criminal cases for further investigation. Because Russian judges are under pressure not to acquit criminal defendants, they frequently remand cases for further investigation when the prosecution has not proven the defendant's guilt; this causes severe delays, sometimes of many years, while defendants languish in the terrible conditions of pretrial detention. The ruling instructed judges to issue final decisions on criminal cases: conviction or acquittal.

Significant progress was made toward abolishment of the death penalty. On February 2, the Constitutional Court issued a ruling prohibiting all courts from passing death sentences. While the court did not find the death penalty itself unconstitutional, it argued that violations of the guaranteed right to a jury trial required that courts be banned from passing death sentences. Under Russia's constitution, all those facing a possible death sentence have the right to have their cases examined by a jury. However, jury trials have been introduced in only nine of Russia's eighty-nine regions; therefore only a small percentage of defendants facing a possible death sentence could exercise their constitutional right to a trial by jury.

On June 3, timed to coincide with a major conference on the death penalty sponsored by the Council of Europe, President Yeltsin signed a decree commuting the sentences of the last of Russia's 716 death-row prisoners. In preceding months, Yeltsin had gradually commuted the sentences of all death row prisoners to life imprisonment or twenty-five years.

About 200,000 children without parental care were in state-run orphanages, where they were often exposed to shocking levels of cruelty and neglect. Beginning with infancy, orphans classified as severely disabled were segregated into "lying down" rooms in the nation's 252 orphanages for young children, where they were changed and fed but are bereft of stimulation and lacking in medical care.

Those labeled retarded or "oligophrenic" (small-brained) faced another grave and consequential violation of their rights around the age of four. At that time, a state commission diagnosed them as "ineducable," and warehoused them for life in "psycho-neurological internats." After this diagnosis, it was virtually impossible for an orphan to appeal the decision. According to official statistics, in 1999 some 30,000 children were confined to these locked and isolated institutions, which were little better than prisons. The orphans might be restrained in cloth sacks, tethered to furniture, and denied stimulation, and were sometimes left to lie half-naked in their own filth. Orphanage staff frequently administered powerful sedatives to children without medical orders. In some cases children who tried to run away were sent to a psychiatric hospital for punishment or treatment.

Not only disabled orphans suffered violations of their rights in Russian state orphanages. Orphans in "regular" orphanages faced the possibility of beatings, being locked in freezing rooms for days at a time, or being sexually abused by orphanage staff. Staff also used public humiliation as a form of punishment. In one case researched in 1998, an orphan recounted how a teacher forced mischievous orphans to undress and stand in front of the open window in front of a full class room.

Regional authorities continued to harass so-called "non-traditional" religious groups. Tactics included administrative harassment, such as pressure on landlords not to rent space to such groups and evictions; hostile media attention at the instigation or with the support of regional officials; and groundless interrogations by law enforcement officials. In an extreme case, St. Petersburg authorities

prosecuted members of a small nontraditional religious organization and confined them in a psychiatric hospital for several weeks for a psychiatric expert assessment. Several religious organizations and clergymen, including an Orthodox priest in Pskov, reported that local authorities and Orthodox church officials tried to obstruct their charitable activities.

The Ministry of Justice continued to administer the re-registration process for religious organizations; most large religious groups had been registered as centralized religious organizations under a 1997 law. Meanwhile, the Constitutional Court was expected to hear an appeal against the discriminatory 1997 law on religion in late 1999.

The Moscow procuracy sought to use the courts to ban the Moscow branch of the Jehovah's Witnesses, claiming the religious organization foments religious strife, creates rifts in families, and threatens people's lives by pressuring the ill to refuse medical help. In March, a Moscow court referred the case to an expert committee for further investigation. At the time of writing, it was unclear when the committee would present its conclusions. Similar attempts to close religious organizations were made in other parts of the country, though mostly unsuccessfully.

A rise in the number of attacks on synagogues and in anti-Semitic rhetoric led to an increasingly politically charged debate about anti-Semitism. In late 1998, State Duma deputies Albert Makashov and Viktor Iliukhin made blatantly anti-Semitic remarks in public, but were not censured by the Duma. On July 14, a neo-Nazi activist stabbed a prominent Jewish leader at the Choral Synagogue in Moscow. Two weeks later, an undetonated bomb was discovered at another Moscow synagogue.

Defending Human Rights

In late 1998, Russia lost one of its leading human rights activists and anti-corruption campaigners, Duma deputy Galina Starovoitova, who was brutally murdered near her St. Petersburg home. At the time of writing, law enforcement agencies were still investigating the murder, and the exact motives for it remained unclear.

Local justice departments refused to register or re-register several human rights organizations, often for outrageous reasons, and several nongovernmental organizations (NGOs) reported other forms of administrative harassment. The Moscow Department of Justice refused to register Ecology and Human Rights, a new NGO founded by outspoken environmentalist Aleksei Iablokov. The department claimed that "the defense of human rights" is a government task and that NGOs should not interfere with government activities. Inexplicably, this position was upheld by the Moscow City Court. The Krasnodar department of justice refused to re-register the Regional Association for the Defense of Human Rights, among others, because "it was impossible to understand what kind of verification of human rights violations this organization will carry out when checking reports on human rights violations [sic]." One of Russia's oldest NGOs, the Glasnost Foundation, was also refused re-registration. In February, the Moscow justice department informed the organization that its statute did not conform to several articles of the law on public organizations. However, the department refused to provide the organization with a list of specific deficiencies. Several activists who faced harassment or prosecution reported that they were forced to remove the words "human rights" from their organizations' names.

Moscow authorities tried to evict the Human Rights Research Center from its offices for reasons that were unclear. At the time of writing, it remained unclear whether the eviction would take place.

In Krasnodar, Vasilii Chaikin, a human rights activist accused of sexual intercourse with a minor, was released on April 17, 1999, after two full years in pretrial detention and immediately taken to the hospital for heart problems. Criminal proceedings against him continue. In October 1998, Vasilii Rakovich, Chaikin's lawyer, was attacked by two unidentified men and beaten over the head. The attack appeared to be related to Chaikin's case.

On February 27 in the republic of Mari El in northern Russia, Viacheslav Poidoverov, chair of the local human rights organization and a member of the local parliament, was beaten outside his home. There were allegations that the incident was connected to his anti-corruption activities. The investigation into the incident was suspended in May.

The Role of the International Community

United Nations

United Nations High Commissioner for Human Rights Mary Robinson paid a week-long visit to Russia during which she met with numerous officials, human rights organizations, and the ombudsman, and visited several prisons and an orphanage. Robinson proposed to the Russian government the establishment of working groups to examine detention practices and de-institutionalization of orphans. She furthermore expressed concern about widespread torture practices to then-Prime Minister Sergei Stepashin and raised harassment of ethnic minorities by Moscow police with Moscow Mayor Yuri Luzhkov.

Inexplicably, UNESCO ignored Moscow's massive human rights problems and nominated Moscow for the City for Peace prize, which is awarded every two years to a mayor and municipality for exceptional actions taken to defend democratic freedom and human rights and the development of culture in the world. Moscow did not eventually win the award.

European Union

The European Union (E.U.) adopted a Common Strategy on Russia, which contained very weak language on human rights and the rule of law. In October, the E.U. presidency expressed some concern for civilians in Chechnya and for the internally displaced. In January, the E.U. Presidency delivered a demarche to the Russian Ministry of Foreign Affairs regarding rising anti-Semitism. It also discussed anti-Semitic remarks by high Communist Party officials with the leadership of that party. Numerous E.U. embassies sent monitors to Alexander Nikitin's trials in October 1998 and February 1999. The Swedish Embassy sent a trial monitor to the final day of Grigorii Pasko's trial.

The European Parliament adopted a resolution on March 11 expressing concern about violations of freedom of religion, increasingly frequent anti-Semitic acts, and conditions in the military and prisons. It called on the Russian government to combat acts of anti-Semitism, racism, and intolerance, to improve living conditions of soldiers, to adopt legislation introducing an alternative to military service, and to improve conditions in prisons.

Council of Europe

The Council of Europe Committee for the Prevention of Torture visited Russia in late 1998 and again in September 1999 to investigate torture and ill-treatment. The committee delegations visited numerous police stations, pretrial detention centers, and other prison facilities. The committee presented the findings on its first visit to the Russian government, but it remained unclear whether the government would make them public.

The Monitoring Committee of the Parliamentary Assembly of the Council of Europe (PACE) visited Russia in May 1999 to examine the implementation of Russia's discriminatory 1997 law on religion, religious intolerance, and anti-Semitism, but will publish its findings only after the June 2000 presidential elections.

United States

In late October, the Clinton Administration expressed concern about the indiscriminate use of force in Chechnya. The U.S. government responded to the bombings in Moscow with sympathy and an offer of increased cooperation and consultation in the field of counterterrorism. While the U.S. criticized the ensuing expulsions of Chechens and others from the north Caucasus from Moscow, official statements ignored the long history of such discrimination in the Russian capital. The State Department's September report on freedom of religion accurately depicted the situation in Russia, describing the discriminatory 1997 law and various forms of harassment employed by Russian authorities against "non-traditional" religions. In April, the special representative of the secretary of state for international religious freedom, Ambassador Robert A. Seiple, visited Moscow and met with numerous religious groups, human rights organizations, and government officials to discuss religious freedom.

The State Department issued two statements expressing concern over anti-Semitic attacks and calling on the Russian government to take appropriate steps against their perpetrators. Vladivostok and St. Petersburg consular officers monitored the trials against Grigorii Pasko and Alexander Nikitin, but no public statements were issued.

The U.S. government provided an estimated (U.S.) \$10 million in training and technical assistance to Russian law enforcement agencies. Notwithstanding an obligation to do so under U.S. law, no meaningful steps were taken to ensure that the beneficiaries of this assistance were not those responsible for torture and police abuse, which is rampant in Russia's criminal justice system.

Organization for Security and Cooperation in Europe

On July 9, at a Parliamentary Assembly meeting in St. Petersburg, the Organization for Security and Cooperation in Europe adopted a strongly worded resolution condemning the prosecution of Alexander Nikitin. It called proceedings against Nikitin "unjustified" and urged the Russian authorities to "ensure proper implementation of necessary legal reforms related to the rule of law."

International Financial Institutions

Midyear allegations of widespread corruption and money-laundering that may have touched funds provided to Russia by international financial institutions provoked policy debates among international lenders who criticized the approach to Russia's development for not emphasizing political and institutional reform alongside economic reform.

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